SIXTH PRINCIPAL MERIDIAN

T. 55 N., R. 89 W.,
Sec. 2, W½ and W½E½;
Sec. 3, E½ and E½W½;
Sec. 10, N½NE¼ and NE¼NW¼;
Sec. 11, N½NW¼ and NW¼NE¼.
T. 56 N., R. 89 W.,
Sec. 34, S½SE¼ and SE¼SW¼;
Sec. 35, S½SW¼ and SW¼SE¼.

The areas described aggregate 1,441.44 acres.

This order shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

HATFIELD CHILSON,
Assistant Secretary of the Interior.

NOVEMBER 28, 1956.

[F. R. Doc. 56-9887; Filed, Dec. 3, 1956; 8:47 a. m.]

[Public Land Order 1369]

[1883220]

NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 8927 OF OCTOBER 29, 1941, WHICH WITHDREW LANDS FOR USE IN CONNECTION WITH PRODUCTION OF MAGNESIUM METALS AND MAGNESIUM ALLOYS FOR NATIONAL DEFENSE PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8927 of October 29, 1941, reserving certain lands in Nevada under the jurisdiction of the Secretary of the Interior for use in connection with the production of magnesium metals and magnesium alloys, which was partially revoked by Public Land Order No. 285 of June 16, 1945 and modified by Public Land Order No. 992 of August 13, 1954, is hereby revoked so far as it affects the following-described lands:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 62 E.,
Sec. 25, N½NE¼, SE¼NE¼, NE¼NW¼, SW¼SE¼, and SE¼SW¼;
Sec. 31, SW¼NE¼, NW¼NW¼, SE¼NW¼; and SE¼SE¼;
Sec. 32, NE¼ and SE¼NW¼;
Sec. 33, NW¼;
Sec. 34, NW¼SE¼, S½SE¼, and W½;
Sec. 35, N½N½, NE¼SW¼, S½SW¼, and W½SW¼SE¼;
Sec. 36.
T. 22 S., R. 62 E.,
Secs. 2, 3, and 4;
Sec. 9, NW¼SE¼.
T. 21 S., R. 63 E.,
Sec. 30, N½ and S½S½;
Sec. 31.
T. 22 S., R. 63 E.,
Secs. 5, 6, 7, 8, 17, and 18;
Sec. 19, NE¼, N½NE¼NW¼, N½S½NE¼NW¼, and N½N½NW¼NW¼;
Secs. 20, 21, 27, 28, 29, 33, and 34.

The areas described aggregate approximately 13,740 acres.

2. The following-described lands were patented to the Reconstruction Finance Corporation, Patent No. 1122851 of October 6, 1947:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 62 E.,
Sec. 36.
T. 21 S., R. 63 E.,
Sec. 31.
T. 22 S., R. 63 E.,
Secs. 5, 6, 7 and 18;
Sec. 8, W½;
Sec. 17, W½;
Sec. 19, NE¼;
Sec. 20, NW¼.

The areas described aggregate 4,759.72 acres.

3. The following-described lands are included in withdrawal application of the City of Henderson, Nevada 017121, and their conveyance to the City is authorized by Public Law 522, 84th Congress (70 Stat. 156). No application will be accepted for such lands:

MOUNT DIABLO MERIDIAN

T. 22 S., R. 62 E.,
Secs. 2, 3, and 4.
T. 22 S., R. 63 E.,
Sec. 8, E½;
Sec. 17, E½;
Sec. 20, E½;
Sec. 21, W½;
Sec. 28, E½ and NW¼.

The areas described aggregate approximately 3,680 acres.

4. The following-described lands are public domain:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 62 E.,
Sec. 25, N½NE¼, SE¼NE¼, NE¼NW¼, SW¼SE¼, and SE¼SW¼;
Sec. 31, SW¼NE¼, NW¼NW¼, SE¼NW¼, and SE¼SE¼;
Sec. 32, NE¼ and SE¼NW¼;
Sec. 33, NW¼;
Sec. 34, NW¼SE¼, S½SE¼, and W½;
Sec. 35, N½N½, NE¼SW¼, S½SW¼, and W½SW¼SE¼.
T. 22 S., R. 62 E.,
Sec. 9, NW¼SE¼.
T. 21 S., R. 63 E.,
Sec. 30, N½ and S½S½.
T. 22 S., R. 63 E.,
Sec. 19, N½NE¼NW¼, N½S½NE¼NW¼, and N½N½NW¼NW¼;
Sec. 20, SW¼;
Sec. 21, E½;
Sec. 28, SW¼;
Secs. 27, 29, 33, and 34.

The areas described aggregate approximately 5,300 acres.

5. The restored lands are located in Clark County, near Las Vegas, Nevada. Because of their adverse soil and water factors, they have no value for agriculture.

6. No application for the lands described in paragraph 4 of this order may be allowed under the homestead, desert-land, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

7. Subject to any valid existing rights and the requirements of applicable law, the lands described in paragraph 4 hereof, are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the non-mineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, and Desert Land Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to perference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on January 3, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on April 4, 1957, will be governed by the time of filing. No application under the Small Tract Laws will be accepted for lands in Clark County.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on April 4, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(b) The lands were opened to applications and offers under the mineral-leasing laws by Public Land Order No. 992 of August 13, 1954. They will be open to location under the United States mining laws beginning at 10:00 a. m. on April 4, 1957.

8. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nevada.

HATFIELD CHILSON,
Assistant Secretary of the Interior.

NOVEMBER 28, 1956.

[F. R. Doc. 56-9885; Filed, Dec. 3, 1956; 8:46 a. m.]